



REPUBLIC OF KENYA

IN THE EMPLOYMENT AND LABOUR RELATIONS COURT OF KENYA AT NAIROBI COUNTY

COURT NAME: NAIROBI EMPLOYMENT AND LABOUR RELATIONS COURT (ELRC)

CASE NUMBER: ELRCC/E1149/2026

INTER PUBLIC UNIVERSITIES COUNCILS CONSULTATIVE FORUM OF THE FEDERATION OF
KENYA EMPLOYERS VS UNIVERSITIES ACADEMIC STAFF UNION AND MINISTRY OF
EDUCATION AND 5 OTHERS

ORDERS(COURT DOCUMENT)

BEFORE HON. LADY JUSTICE AGNES M. K. NZEI

THIS MATTER coming up before Honourable Lady Justice Agnes Kitiku Nzei on 28th September 2026. HAVING PERUSED the Notice of Motion dated 25th September 2026 and filed under a Certificate of Urgency:

IT IS HEREBY ORDERED:

1. THAT the application be, and is hereby certified urgent.
2. THAT the application shall be served forthwith, and an affidavit of service shall be filed.
3. THAT in the interim, an order is hereby issued restraining the Respondent by itself, its officials, agents and/or members from taking part in, calling, instigating or inciting others to take part in an unprotected strike or any form of industrial action pending hearing and determination of the application.
4. THAT further, and in the interim, the industrial actions or strikes called and/or threatened by the Respondent in its Strike Notice dated 24th September 2026 are hereby declared unlawful and unprotected, pending hearing and determination of the application.
5. THAT the matter will be mentioned virtually in court on 5th of October 2026 for appropriate directions on disposal of the application.

GIVEN under my hand and seal of the Honourable court this 28th September 2026.

Penal Notice: Take notice that any disobedience or non-observance of the order of the court served herewith will result in penal consequences to you and any other person(s) disobeying and not observing the same

SIGNED BY:



The Judiciary of Kenya

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THE JUDICIARY OF KENYA.
NAIROBI EMPLOYMENT AND LABOUR RELATIONS COURT (ELRC)
CLAIMS AND LABOUR RELATIONS DIVISION
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